

Roland Berger Limited v Darren Perrin

[2026] EWHC 1506 (Comm), Case No: CL-2025-000358

High Court of Justice, King's Bench Division, Business and Property Courts of England and Wales, Commercial Court

Jurisdiction

England and Wales; jurisdictional dispute concerning Dubai State Court

Area of law

Employment law, breach of contract, confidentiality, forum non conveniens, jurisdictional dispute

Legal question

Whether the State Court of Dubai is an available forum with competent jurisdiction, and if so, whether it is clearly or distinctly more appropriate than the Commercial Court in London for resolving disputes arising from an alleged coordinated departure of 24 employees from Roland Berger's Middle East operations to competitor Kearney. Should the English proceedings be stayed in favor of Dubai courts?

Key facts

Dr Perrin, a British citizen domiciled in England, was employed by RBL under a contract governed by English law with an exclusive English jurisdiction clause. He worked primarily on Middle East sustainability projects, spending approximately half his working time physically in the Middle East (particularly UAE and KSA) while maintaining his home in Stockport, Greater Manchester. In early 2025, Dr Perrin resigned as part of a coordinated 'Team Move' of 24 employees to competing firm Kearney Abu Dhabi and other Kearney Middle East entities. RBL alleges Dr Perrin participated in planning this move while still employed, participated in meetings and communications regarding business plans for a competitive sustainability practice, had input into presentations containing alleged trade secrets, and engaged in WhatsApp exchanges discussing client prospects and confidential information. Of the 24 departing employees, 22 were subsequently employed by Kearney Abu Dhabi under UAE law contracts. RBL seeks approximately £45 million in damages, claiming Dr Perrin participated in breach of his contractual and fiduciary duties. Dr Perrin alone has been sued; the other 23 employees have not yet been sued.

Holding

The court held that the State Court of Dubai is not an available forum for this dispute because it lacks jurisdiction under the Civil Procedure Code of Dubai. While Article 20(3) grants jurisdiction where an obligation arose or was performed in the UAE, most of Dr Perrin's employment and alleged wrongdoing (planning and coordination, WhatsApp communications, the Team Move planning itself) occurred in England or could be treated as primarily English in character. Although some claims relate to consequences felt in the Middle East and client relationships located there, the exclusive English jurisdiction clause in the Director Agreement, combined with Dr Perrin's English domicile and employment status, means Dubai courts would be unlikely to accept jurisdiction over claims not squarely within Article 20(3). The court declined to stay the proceedings. The application failed at the first stage of the Spiliada test because no properly available alternative forum was established.

Significance

This decision clarifies the circumstances under which English courts will consider staying proceedings against an English-based employee in favor of foreign jurisdiction in multi-jurisdictional disputes. It demonstrates that where an employee is domiciled in England, has an exclusive English jurisdiction clause, and the planning and coordination of the alleged wrongdoing occurred in England, English courts are an appropriate forum even when consequences and related parties are located abroad. The judgment addresses the practical realities of litigation arising from coordinated international employee departures, considering whether to analyze the dispute narrowly (claims against the specific defendant) or broadly (the Team Move as a whole). The decision confirms that while parties cannot create Dubai court jurisdiction by agreement alone, and Dubai courts generally respect exclusive English jurisdiction clauses, this factor must be weighed against genuine connecting factors to Dubai such as where obligations were performed.

Precedent impact

The judgment applies and clarifies the two-stage *Spiliada* test for forum non conveniens. It resolves that in defining 'the dispute' for jurisdictional purposes, courts must consider practical realities and overall litigation shape, potentially including prospects of related litigation, but must exercise caution against mere speculation. The decision affirms that exclusive jurisdiction clauses in employment contracts, combined with the employee's domicile in the jurisdiction, create strong factors against stay of proceedings. It distinguishes between multi-party cases where all defendants must be considered together and cases where a claimant has chosen to sue only one defendant, holding that a claimant's choice to pursue one party does not automatically render that jurisdiction inappropriate even if others involved remain unsued.

Full judgment URL

<https://www.bailii.org/ew/cases/EWHC/Comm/2026/1506.html>